

4th May 2023

To the Director of
BOAS+ Limited
23 Benwick Court
Croydon Road
Penge
London
SE23 7SS

Dear Dafe

I am writing to confirm that Xpertise Recruitment is offering BOAS+ Limited an assignment as part of a project for our Client, Global Banking School Ltd, starting on the 1st May 2023.

The Terms of Engagement are enclosed below. A signed copy of this document must be sent to us before the assignment can commence.

As a Limited Company contractor working for Xpertise there are some items, which are important to remember to make sure everything runs smoothly.

Terms of Engagement - This is an important document which sets out your terms and conditions; it also covers the legal and insurance aspects of being on customer premises, so please make sure you sign and return as soon as possible.

Timesheets - to make sure no delays are experienced in payment, the following *guidelines* MUST be observed.

- Xpertise's Online Timesheet must be completed (you will receive an email with login details for the system in due course once your signed contract has been returned to us)
- The Xpertise Timesheet system will create an automated "self bill" invoice on your behalf so simply login, enter your time and click submit!
- Time must be submitted and approved before Monday 17:00 following the week worked.

Invoices – When you enter time into our Xpertise timesheet portal, the Client's approving manager will approve the timesheet and a "self bill" invoice will be created on your behalf. You are not therefore required to send Xpertise any further invoices.

Expenses – should any expenses be incurred which are to be reclaimed from the client, please also input this into the timesheet system and attach any paperwork/receipts before submitting. Xpertise will reimburse such invoices once we receive cleared funds from the end client. As such please ensure expense claims are submitted as soon as possible to avoid delay.

Payment – If timesheets are approved on time then we guarantee to make a BACS payment on the Friday relative to the payment schedule. This will clear into your company bank account after a further two working days. Any late invoices will be paid on the following scheduled payment date.

Problems – If for any reason we are unlikely to receive a timesheet before the deadlines it is essential that our account manager is contacted. Alternatively please get in touch with our back office team at admin@xpertise-recruitment.com

If you have not already done so, please send us a copy of your company registration number, VAT certificate (if applicable), bank details and, company insurance certificates along with the Representative's ID and national insurance number. Once all of this information is received, alongside your signed contract, an account will be activated on our timesheet portal.

If you have any queries concerning who to report to, who can approve timesheets or problems incurred on-site, then please talk to your Xpertise Account Manager.

I hope this information will help your contract run smoothly and would like to take this opportunity to welcome you to Xpertise's team of contractors.

Yours sincerely



**RICHARD HARRISON
DIRECTOR**

AGREEMENT FOR THE ENGAGEMENT AND PROVISION OF SERVICES

This agreement is made on 4th May 2023 ("**Effective Date**")

BETWEEN

- (1) Xpertise Recruitment Limited, a company incorporated in England and Wales under company number 08316057 and whose registered office is at Cardinal Square, Nottingham Road, Derby DE1 3QT, ("**Employment Business**"); and
- (2) BOAS+ Limited, a company incorporated in England and Wales under company number 08664121 and whose registered office is at 23 Benwick Court, Croydon Road, Penge, London SE23 7SS ("**Contractor**").

IT IS AGREED as follows:

1. Interpretation and Definitions

- 1.1. Unless the context otherwise requires, references to the singular include the plural.
- 1.2. Headings contained in this Agreement are for reference purposes only and will not affect the intended meanings of the clauses to which they relate.
- 1.3. In this Agreement –

"**Agreement**" means the terms and conditions set out herein together with any issued Assignment Schedule to these terms;

"**Assignment**" means the period during which Contractor provides Services as set out in an Assignment Schedule;

"**Assignment Schedule**" means the schedule agreed between Employment Business and Contractor for each Assignment containing the particulars of the Assignment and Services;

"**AWR**" means the Agency Workers Regulations 2010 (as amended);

"**Client**" means the person, firm or corporate body together with any subsidiary or associated company as defined by section 1159 of the Companies Act 2006 requiring Services, and includes any third party to whom Representative provides services pursuant to this Agreement on behalf of Client;

"**Conduct Regulations**" means the Conduct of Employment Agencies and Employment Businesses Regulations 2003 (as amended from time to time) and references to a particular Regulation are references contained therein;

"**Data Controller**" means (i) "data controller" in the Data Protection Act 1998 in respect of processing undertaken on or before 24 May 2018; and (b) "controller" in accordance with the General Data Protection Regulation (EU) 2016/679 in respect of processing undertaken on or after 25 May 2018;

"**Data Protection Legislation**" means all applicable laws and regulations, as amended or updated from time to time, in the United Kingdom relating to data protection, the processing of personal data and privacy, including without limitation, (a) the Data Protection Act 1998; (b) (with effect from 25 May 2018) the General Data Protection Regulation (EU) 2016/679; (c) the Privacy and Electronic Communications (EC Directive) Regulations 2003 (as may be amended by the proposed Regulation on Privacy and Electronic Communications); and (d) any legislation that replaces or converts into United Kingdom law the General Data Protection Regulation (EU) 2016/679, the proposed Regulation on Privacy and Electronic Communications

or any other law relating to data protection, the processing of personal data and privacy resulting from the United Kingdom leaving the European Union;

“Data Subject” means as set out in, and will be interpreted in accordance with Data Protection Legislation;

“Off-Payroll” means Chapter 10 Part 2 of Income Tax (Earnings and Pensions) Act 2003;

“Opted-Out” means opted-out of the Conduct Regulations in accordance with Regulation 32(9);

“Personal Data” means as set out in, and will be interpreted in accordance with Data Protection Legislation;

“Personal Data Breach” means the accidental or unlawful destruction, loss, alteration, unauthorised disclosure of, or access to, Personal Data transmitted, stored or otherwise Processed in connection with this Agreement;

“Process” means as set out in, and will be interpreted in accordance with Data Protection Legislation and **“Processed”** and **“Processing”** will be construed accordingly;

“Qualifying Period” means as defined within regulation 7 of the AWR;

“Representative” means the employees, officers or representatives of Contractor, specified in the Assignment Schedule (including any substitute made in accordance with clause 2.6 below), who renders Services on behalf of Contractor;

“Restricted Period” means the six months following the end (howsoever arising) of the Assignment; and

“Services” means the services to be performed by Representative on behalf of Contractor for the benefit of Client pursuant to this Agreement.

2. The Services

- 2.1. Following a request from Client, Employment Business has requested Contractor and Contractor has agreed with Employment Business to provide Services to Client as detailed within an Assignment Schedule, on the terms and conditions of this Agreement.
- 2.2. Contractor shall procure that Services shall be undertaken by Representative.
- 2.3. Employment Business and Contractor shall agree an Assignment Schedule (or confirm their agreement in an Assignment Schedule) specifying Client, the fee payable by Employment Business, Representative, Services, such expenses as may be agreed, any notice period and any other relevant information.
- 2.4. Save as otherwise stated in this Agreement, Contractor and Representative will be entitled to supply its/their services to any third party during the term of this Agreement provided that this in no way compromises or is not to the detriment of the supply of Services, and provided there is no conflict of interest.
- 2.5. Contractor shall not, and shall procure that Representative shall not, whether directly or indirectly through any company, partnership or person, solicit nor enter into any contract with Client or with any third party introduced to Contractor or Representative by Client with whom Representative had material contact with during the Assignment, to provide any services of the same or a similar nature as Services during the Assignment or during the Restricted Period without Employment Business’s prior written consent, such consent may be withheld at Employment Business’s absolute discretion or granted subject to any conditions Employment Business may wish to impose.
- 2.6. Contractor may substitute the named Representative in the Assignment Schedule provided that -
 - 2.6.1. Services remain as detailed in the Assignment Schedule;
 - 2.6.2. Employment Business and/or Client is reasonably satisfied that the proposed substitute possesses all qualifications, experience, skills, resources and authorisations needed by Client or required by law to fulfil Services;

- 2.6.3. the proposed substitute passes all relevant security checks;
- 2.6.4. no delay or reduction in quality shall occur due to the lack of technical or Client specific knowledge held by the substitute; and
- 2.6.5. if requested by Employment Business, Contractor provides, without charge, an effective handover to the proposed substitute to the reasonable satisfaction of Client.
- 2.7. The Contractor and the Representative have agreed to opt out of the Conduct Regulations and have signed an agreement to that effect and as such understand that none of the Conduct Regulations apply to this Assignment. Further the Contractor warrants that it will only supply staff to perform the Services who have opted out of the Conduct Regulations and further that any person to whom the performance of the Services are assigned or sub-contracted has opted out of the Conduct Regulations.
- 2.8. The Contractor acknowledges that no Representative is an agency worker as defined under the AWR and that the AWR do not apply in relation to this Agreement or any Assignment under this Agreement. The Contractor shall indemnify and keep indemnified the Employment Business (or, as the case may be, the Client) against any Losses the Employment Business (or the Client) may suffer or incur as a result of any claim made by or on behalf of any Representative under the AWR.
- 2.9. Contractor acknowledges and accepts that the Assignment is in the scope of Off-Payroll and that where Off-Payroll applies, Employment Business has a statutory duty to make deductions in accordance with Off-Payroll to payments made by Employment Business to Contractor.

3. The Contract

- 3.1. This Agreement constitutes the entire agreement between Employment Business and Contractor, and it supersedes all previous agreements between the parties in relation to the subject matter hereof and governs all Assignments undertaken by Contractor. Contractor warrants that, in agreeing to enter into this Agreement, it has not relied on any statement or representations made by Employment Business or by Client.
- 3.2. No variation or alteration to this Agreement will be valid unless the details of such variation are agreed between Employment Business and Contractor and set out in writing and signed by both parties save Employment Business may vary the Off-Payroll status and accordingly vary Contractor fee during Assignment to fulfil its statutory duty.
- 3.3. Contractor agrees it has accepted the terms of this Agreement if it performs any Services for Client or submits a timesheet to Employment Business in relation to performing Services for Client.
- 3.4. Without prejudice to any rights accrued prior to termination, the obligations within clauses 1, 2.5, 5.7, 5.10, 5.11, 6.3, 9.2, 9.3, 10, 11, 12.3, 13, 14.1, 14.2, 14.3, 15, 16 and 17 will remain in force beyond the cessation or other termination (howsoever arising) of this Agreement.

4. Undertakings of Contractor

- 4.1. Contractor warrants to Employment Business that by entering into and performing its obligations under this Agreement it will not thereby be in breach of any obligation that it owes to any third party. Contractor further warrants to Employment Business that Representative, by performing Services on behalf of Contractor, will not thereby be in breach of any obligation that it owes to any third party.
- 4.2. Contractor warrants that Representative has the necessary skills, experience, training, qualifications and any other authorisation which Client considers are necessary, or which are required by law or by any professional body to provide Services for the period of the Assignment. Contractor shall, on request, provide proof of compliance with this clause.

- 4.3. Contractor warrants and represents that all statements, whether oral or written, made by it and/or any Representative and documentation it provides, in relation to its construction, operations, the performance of Services in the course of the Assignment and relating to Representative's experience, training, qualifications and any relevant or necessary authorisation, are true and accurate and will be kept up to date.
- 4.4. Contractor warrants that Services shall be performed with a high degree of professional skill and care.
- 4.5. Contractor shall procure that Representative works such hours as are necessary to perform Services and that Representative shall not unreasonably fail to provide Services during hours required by Client for the convenience of Client and for the proper performance of Services. Where minimum hours are specified in the Assignment Schedule, Contractor warrants that it shall ensure that Representative shall work for such minimum hours.
- 4.6. Contractor warrants that Representative shall follow all applicable rules and procedures of Client relevant to independent contractors and the delivery of Services and shall act in a professional manner at all times when at the premises at which Services are to be performed.
- 4.7. Contractor warrants that it and Representative shall, in relation to Services, adhere to all applicable laws, statutes and regulations as enacted from time to time.
- 4.8. Contractor warrants that pre-employment checks have been carried out in relation to each Representative and that each Representative has valid and subsisting leave to live, work and to remain lawfully in the UK for the duration of the Assignment.
- 4.9. Contractor warrants that –
 - 4.9.1. it is not a Managed Service Company as defined in the Income Tax (Earnings and Pensions) Act 2003 (as amended);
 - 4.9.2. it is a personal service company which is compliant in all respects with IR35 legislation;
 - 4.9.3. it is a company registered within the United Kingdom; and
 - 4.9.4. the initial Representative owns five percent or more of Contractor and/or is an employee of Contractor.
- 4.10. Contractor warrants that it will ensure the relevant provisions of this Agreement are included within the contract between Contractor and Representative and shall ensure that Representative is fully aware of their obligations in connection with this Agreement.
- 4.11. Contractor warrants that it shall procure that, where Representative is eligible in relation to the Assignment hereunder, Representative is enrolled (or given the opportunity so to do) in a pension scheme in accordance with The Occupational and Personal Pension Schemes (Automatic Enrolment) Regulations 2014 and Contractor hereby agrees that it will indemnify and hold harmless Employment Business and/or Client from any demands made against them in connection with this clause.
- 4.12. Contractor shall be wholly responsible for the correct payment of any PAYE Income Tax and National Insurance Contributions and any other taxes and deductions payable in respect of Representative and Contractor warrants that it shall procure the correct payment of such in accordance with relevant legislation.
- 4.13. Contractor will, on request, provide proof of compliance with this clause 4 as may be required by Employment Business from time to time.

5. Obligations of Contractor

- 5.1. Contractor will, and shall procure Representative will -
 - 5.1.1. not engage in any conduct detrimental to the interests of Employment Business or Client which includes any conduct that may bring Employment Business or Client into disrepute and which may result in the loss of custom or business;

- 5.1.2. comply with any statutory or other reasonable rules or obligations including but not limited to those relating to health and safety, site security and IT usage and security during the Assignment to the extent that they are applicable while performing Services and to take all reasonable steps to safeguard its own safety, the safety of Representative and the safety of any other person who may be affected by its actions during the Assignment;
- 5.1.3. furnish Client and/or Employment Business with any progress reports as may be requested from time to time;
- 5.1.4. notify Employment Business forthwith in writing if Contractor should become insolvent, dissolved or subject to a winding up petition;
- 5.1.5. where required, provide and insure at its own cost any such necessary equipment as is reasonable for the performance of Services and ensure that any computer equipment and associated software which it provides for the purpose of providing Services contains up-to-date anti-virus protection; and
- 5.1.6. not at any time to make any copy, abstract, summary or précis of the whole or any part of any document or other material belonging to Client except when required to do so in the course of its duties under the Assignment in which event any such item shall belong to Client or Employment Business as appropriate.
- 5.2. Contractor will procure that Representative shall obtain the signature/electronic approval of an authorised representative of Client on a timesheet in a format provided by Employment Business and submit timesheets to Employment Business, in accordance with Employment Business's procedure. A timesheet shall be entered for each week of the Assignment indicating time worked.
- 5.3. Contractor warrants and represents that the hours Representative records on the timesheet are true and accurate.
- 5.4. If Contractor/Representative is unable or unwilling for any reason to undertake Services during the course of an Assignment Contractor/Representative should inform Employment Business as soon as possible.
- 5.5. Contractor will have reasonable autonomy in relation to determining the method of performance of Services but in doing so it shall co-operate with Client and comply with all Client's reasonable and lawful requirements in order to ensure successful delivery of Services.
- 5.6. Contractor acknowledges, and shall procure that Representative acknowledges, that failure to deliver and obtain Client signature/electronic approval of timesheets and in accordance with Employment Business's procedure regarding such may delay payment. In order to ensure prompt payment, such online timesheets should be completed and approved by the Client no later than 5pm on Monday following the week to which they relate.
- 5.7. Contractor will, and shall procure that Representative will, at the end of the Assignment or on demand, at its own expense, return to Employment Business or to Client (as directed) all property of Client including, but not limited to, all equipment, documents (including copies) and other such materials, security passes, electronic storage devices and keys.
- 5.8. Nothing in this Agreement should be construed to render any Representative an employee or a worker of either Employment Business or Client. Contractor shall ensure that Representative does not hold himself/herself out as an employee or a worker or an agent of either Employment Business or of Client.
- 5.9. Neither Employment Business nor Client shall be required or obliged to bear the cost of any training that Representative may require in order to perform Services.
- 5.10. Contractor agrees to promptly, upon request, provide evidence relating to the construction and operations of Contractor's company and details of Representative's status/engagement in order to assist Employment Business to comply with its contractual and legal obligations.

- 5.11. Contractor agrees, and shall procure that Representative agrees, to promptly provide to Employment Business any information requested by Employment Business that may be required to satisfy statutory legislation and reporting requirements relating thereto.
- 5.12. Contractor shall be entitled to assign the agreement or sub-contract elements of the Services to third party contractors provided that Client and Employment Business are satisfied that the sub-contractor or assignee possesses the necessary skills, expertise and resources to perform those elements of the Services, passes all relevant security checks and the Contractor keeps Employment Business fully and effectively indemnified against any reasonable costs, claims or expenses that may be incurred by it or the Client as a result of the use of such sub-contractors including the reasonable cost of all instruction (necessitated by the sub-contracting) for the sub-contractor.

6. Invoicing

- 6.1. Employment Business shall create a self-bill invoice on behalf of the Contractor based on timesheets approved by the Client. Such self-bill invoice should bear the Contractor's name, the name of the Representative who provided the Services, the Consultancy's company registration number and VAT number and should state any VAT due on the invoiced sum. The Contractor will notify the Employment Business if it ceases to become VAT registered or changes its VAT registration number.
- 6.2. Unless otherwise stated in the Assignment Schedule, Contractors will not be entitled to claim any expenses from Employment Business or Client. Where applicable, Contractor will enter business expense claim details online and Employment Business will raise a self-bill invoice for business expenses which are approved by Client as agreed in writing by Employment Business. Contractor will, on request, provide receipts in relation to invoiced expenses and Employment Business may withhold payment of expenses subject to receiving such receipts. VAT on expenses must be shown separately.
- 6.3. Without prejudice to Employment Business's rights and remedies under this Agreement or in law, whenever a sum of money is recoverable from or payable by Contractor -
- 6.3.1. in relation to an overpayment;
 - 6.3.2. for any sum that Contractor is liable to pay to Employment Business in respect of any breach of this Agreement; or
 - 6.3.3. from any indemnity given in this Agreement,
- Employment Business may deduct that sum from any sum then due or which at any later time becomes due to Contractor under this Agreement.

7. Charges/Fees

- 7.1. Employment Business will pay the Contractor for Services in accordance with the fees specified in the Assignment Schedule, plus any applicable VAT subject to:
- 7.1.1. the satisfactory performance of the Services;
 - 7.1.2. receipt of Contractor's timesheet approved by the Client;
 - 7.1.3. generation of the self-bill invoice in accordance with clause 6
- 7.2. Payments will be made to Contractor as specified in Employment Business's payment schedule.
- 7.3. If Contractor or Representative is unable or unwilling for any reason to provide Services in the course of the Assignment then no fee will be payable by Employment Business to Contractor during any period that Services are not provided.
- 7.4. If Employment Business has reason to believe that Client may not pay Employment Business its invoices (or parts of them) in relation to Representative, Contractor agrees, and shall procure Representative agrees, to provide Employment Business with any reasonably requested information, explanations and/or written statements relating to the Assignment/Services and with any reasonable assistance necessary to help Employment Business obtain such payment from Client.

- 7.5. For the avoidance of doubt and subject to any agreement by the parties to the contrary, Contractor will not be entitled to receive payment from Employment Business or from Client for time not spent on Assignment whether in respect of holidays, illness or absence or for any other reason.

8. Term of the Agreement

- 8.1. Without prejudice to clause 3.4, this Agreement will commence on the Start of Assignment date as set out in the Assignment Schedule or the Effective Date (which ever date is earliest) and will continue until -
- 8.1.1. the End of Assignment date as set out in the Assignment Schedule, or
 - 8.1.2. terminated in accordance with any of the clauses 8.2, 8.3, 8.4 or 8.5.
- 8.2. Without prejudice to clauses 3.4, 8.4, 8.5 and 8.3, either party may terminate this Agreement without cause by giving in writing the notice period stated within the Assignment Schedule. Where an Assignment Schedule does not provide Contractor with a right to give notice to end the Assignment early, Contractor may request Employment Business to end the Assignment early, in which case Employment Business may, at its sole discretion, use reasonable endeavours to agree early termination of the Assignment with Client.
- 8.3. Notwithstanding clause 8.2 above and without prejudice to clause 3.4, Employment Business may without liability end this Agreement and/or any specific Assignment and instruct Contractor to procure that Representative ceases work on the Assignment immediately or on short notice at any time, where -
- 8.3.1. Contractor and/or Representative has committed any serious or persistent breach of any of its obligations or undertakings under this Agreement;
 - 8.3.2. Client believes Contractor and/or Representative is incompetent or has been negligent in the performance of Services;
 - 8.3.3. Client reasonably believes that Contractor and/or Representative has not observed any condition of confidentiality applicable to Contractor and/or to Representative from time to time;
 - 8.3.4. for any reason Contractor and/or Representative is considered unsatisfactory by Client;
 - 8.3.5. Employment Business receives any information regarding the unsuitability of Contractor or Representative to provide Services in the course of the Assignment;
 - 8.3.6. Contractor becomes insolvent, goes into administration, is dissolved or is subject to a winding up petition or Contractor is suffering severe financial distress in the reasonable opinion of Employment Business;
 - 8.3.7. any member of Contractor's staff or any Representative is guilty of any fraud, dishonesty or serious misconduct;
 - 8.3.8. performance of Services in the course of the Assignment is prevented by the incapacity of Representative and Contractor is unable to provide a replacement in accordance with clause 2.6 for the duration of such incapacity;
 - 8.3.9. Representative informs Employment Business that he/she no longer wishes to be supplied by Contractor;
 - 8.3.10. Client reasonably believes that Contractor and/or Representative has damaged or is damaging the reputation of Client;
 - 8.3.11. whereupon an event of force majeure or any other incapacity of Contractor/Representative affects the delivery of Services;
 - 8.3.12. Employment Business has reason to believe Client may not be able to pay any or all of Employment Business's invoices; or
 - 8.3.13. Client changes their assessment of Off-Payroll status.

For the avoidance of doubt, termination pursuant to this clause 8.3 will take precedence over termination pursuant to clause 8.2 above and over any notice periods set out in the applicable Assignment Schedule.

- 8.4. Notwithstanding clause 8.2 above and without prejudice to clause 3.4, Contractor acknowledges that the continuation of the Assignment is subject to and conditioned by the continuation of the contract entered into between Employment Business and Client. In the event that the contract between Employment Business and Client is terminated for any reason then the Assignment will cease with immediate effect and without liability to Employment Business.
- 8.5. Notwithstanding clause 8.2 above and without prejudice to clause 3.4, where Employment Business receives notice from Client to terminate the Assignment or not to proceed with the Assignment, Employment Business may, with immediate effect and without liability, terminate this Agreement and any Assignment hereunder.
- 8.6. Contractor agrees that Employment Business may notify Contractor and/or Representative verbally of termination of Assignment/Agreement where, in the reasonable opinion of Employment Business, the situation merits such including (without limitation) where such termination is required to be with immediate effect.
- 8.7. Contractor acknowledges and agrees that Employment Business is not obliged to provide any reason or further explanation to Contractor or to Representative in connection with termination under clause 8, whether or not such a reason is provided by Client to Employment Business. Furthermore, in the event a reason is provided whether by Client or by Employment Business, Employment Business is not liable to Contractor or to Representative in relation to the content of such reason.
- 8.8. Failure by Contractor to give notice of termination as required in accordance with this Agreement will constitute a material breach of contract and Contractor agrees to indemnify and hold harmless Employment Business from any and all losses in connection with its breach of this clause 8.8.

9. Intellectual Property

- 9.1. Contractor does, and shall procure that Representative does, hereby assign to Client (or to Employment Business for onward transfer to Client where directed so to do by Employment Business) all present and future copyright, title and interest of whatever nature (including but not limited to copyright and patent application rights), topography rights, design rights, trademarks, rights in databases, sui generis rights, trade secrets (whether registered or unregistered) and other confidential information, know-how and all other intellectual property rights of a similar nature in any part of the world and all other intellectual property rights in original work and all applications and rights to apply for the protection of any of the foregoing, produced, prepared or provided by Representative, in whatever media, in relation to or arising from the performance of the Assignment prepared for Client or produced by any Representative in connection with an Assignment under this Agreement, and that the aforementioned rights shall vest in and remain the property of Client throughout the world free from any interest of Contractor, Representative or any third party or parties.
- 9.2. Contractor will do anything, and shall procure that Representative will do anything, that Client may reasonably require in order effectively to vest such rights in Client (or to Employment Business for onward transfer to Client where directed so to do by Employment Business) or such third party as Client specifies or to evidence the same (whether before or after the termination of this Agreement).
- 9.3. Contractor acknowledges and agrees, and shall procure that Representative acknowledges and agrees, that Client retains ownership of all intellectual property rights of whatever nature and, if registrable, whether registered or not, in the documents or other material and data and other information provided to or provided by Representative in relation to an Assignment. For the avoidance of doubt, Client will not be deemed to have granted Contractor or Representative any licence to use the documents or other material and data or other information other than solely for the purposes of the relevant Assignment.
- 9.4. Contractor will, and shall procure that Representative will, promptly disclose to Client and to Employment Business any idea, method, invention, discover, design, concept or other work made or created by Representative in relation to Services provided during the Assignment.

- 9.5. Contractor warrants that Services provided are not in breach of the intellectual property rights of any third party.
- 9.6. Contractor will indemnify and hold harmless Client and Employment Business from (without limitation) any and all actions, claims, proceedings, settlements, legal fees, costs, expenses, damages, demands, losses and liabilities whatsoever and however incurred resulting or arising out of any claim by any third party that the use or possession of work performed or delivered by Contractor or by Representative in connection with this Agreement infringes the intellectual property rights of that third party.
- 9.7. Contractor hereby, and will procure that Representative does, irrevocably and unconditionally waive in favour of Client any and all moral rights conferred on it and/or Representative by statute for any intellectual property, design or copyright work in which rights are (or should be) vested in Client pursuant to this clause 9. Contractor hereby warrants that it has obtained the same undertaking from Representative.

10. Confidentiality and Data Protection

- 10.1. Without prejudice to every other duty not to disclose any and all information given to Contractor or to Representative or gained in confidence in connection with this Agreement (including, without limitation, information provided by or pertaining to Employment Business) Contractor shall not, and shall procure that Representative shall not, at any time whether during or after the Assignment, disclose to any person or make use of any of the trade secrets, confidential or sensitive (including commercially sensitive) information of Client, of Client's customers and of Employment Business, save where required by law. For the purposes of this clause, confidential or sensitive information is confidential if it is labelled confidential or labelled sensitive, if the disclosing party expressly states (whether in writing or otherwise) to Contractor and/or to Representative that the information is confidential or if Contractor and/or Representative ought to have known that the information may be confidential or sensitive.
- 10.2. Contractor shall, and shall procure that Representative shall, both during and after the Assignment, keep confidential from any third party and from Client the rates paid to Contractor by Employment Business.
- 10.3. Contractor agrees that if Employment Business and/or Client suffer disclosure of their confidential information through breach of clause 10.1, Employment Business or Client (as the case may be) shall be entitled, in addition to any and all other remedies, to temporary and injunctive relief.

11. Data Protection

11.1. The parties hereto

- 11.1.1. acknowledge this clause is in addition to, and does not relieve, remove or replace, a party's obligations under the Data Protection Legislation;
- 11.1.2. acknowledge that for the purposes of the Data Protection Legislation, Employment Business is a Data Controller and the Contractor is a Data Controller but they are not Joint Controllers (as defined in the Data Protection Legislation) unless a specific agreement is made to that effect between the parties;
- 11.1.3. agree that the Representative is not Client's Data Processor (as defined within Data Protection Legislation) save where agreed otherwise within an Assignment Schedule and subject to additional terms and conditions;
- 11.1.4. warrant to each other that any Personal Data relating to a Data Subject, whether provided by Client, by Employment Business, by Contractor or by Representative, will be used, Processed and recorded by the receiving party in accordance with Data Protection Legislation and for the purposes of fulfilling this Agreement;
- 11.1.5. shall ensure that all personnel who have access to and/or process Personal Data are obliged to keep the Personal Data confidential;

- 11.1.6. will take appropriate technical and organisational measures to adequately protect all Personal Data against accidental loss, destruction or damage, alteration or disclosure;
 - 11.1.7. will provide reasonable assistance to the other in responding to any request from a Data Subject with respect to data subject access requests and other data subject rights, data security, breach notifications, impact assessments and consultations with supervisory authorities or regulators;
 - 11.1.8. will promptly notify the other on becoming aware of a suspected or actual Personal Data breach relevant to Personal Data transferred pursuant to this Agreement; and
 - 11.1.9. will maintain complete and accurate records and information to demonstrate their compliance with this clause 11.1.
- 11.2. Contractor understands, and shall ensure that Representative understands and consents that in providing Services, Personal Data relating to Representative will be collected by Employment Business and passed to Client in the course of the administration of the agreement between Employment Business and Client. Contractor shall ensure Representative understands that in providing Services, Client and/or Employment Business, or anyone processing data on behalf of Client and/or Employment Business, may transfer Personal Data relating to Representative outside the European Economic Area.
- 11.3. The Contractor will, and will procure that Representative will, when requested so to do by Employment Business, make available to Employment Business all information necessary to demonstrate compliance with the obligations associated with Data Protection Legislation and clause 11 and will allow for audits and inspections (upon reasonable notice) in order to demonstrate compliance.
- 11.4. Notwithstanding clauses 11.1.7 and 11.1.8, in the event of a suspected or actual Personal Data Breach, Contractor will promptly (at its own expense) provide such information, assistance and cooperation and do such things as Employment Business may request to -
- 11.4.1. investigate and defend any claim or regulatory investigation;
 - 11.4.2. mitigate, remedy and/or rectify such breach; and
 - 11.4.3. prevent future breaches.
- 11.5. Contractor will not, and will procure that Representative will not, release or publish any filing, communication, notice, press release or report concerning any Personal Data Breach without the prior written approval of Employment Business.
- 11.6. Contractor understands, and shall ensure that Representative understands, that in providing Services Personal Data may be Processed in order to comply with Employment Business's and Client's or associated employment intermediaries' legal obligations, including reporting Assignment details to HMRC. Contractor warrants that Representative has expressly consented to such Processing (including any such transfer) on the understanding that any Personal Data is processed fairly and lawfully in accordance with the Data Protection Legislation. Contractor acknowledges, and shall ensure Representative acknowledges, that information provided in relation to clauses 5.10 and 5.11 may be disclosed by Employment Business to a third party specifically for the purposes of complying with statutory legislation.

12. Relationship between Employment Business, Contractor, Representative and Client

- 12.1. This Agreement, or any Assignment hereunder, is not intended by the Parties to constitute or give rise to a contract of service or an employment contract.
- 12.2. Employment Business will not charge Contractor or Representative for work-finding services.
- 12.3. Upon the termination or expiry of this Agreement, howsoever arising, Employment Business will not be obliged to offer, and Contractor and Representative will not be obliged to accept, any further assignments, contracts, engagements, projects or request for services of any type whatsoever.

- 12.4. Contractor and Representative have no authority to act or contract on behalf of Employment Business or Client and will not, and shall procure that Representative will not, hold itself/himself/herself out as capable of doing so. Contractor will not, and shall procure that Representative will not, purport to bind Employment Business or Client in any way.
- 12.5. Contractor acknowledges to Employment Business that its services are supplied to Employment Business as an independent contractor and that accordingly the responsibility of complying with all statutory and legal requirements relating to Representative (including, without limitation, the correct payment of taxation and National Insurance Contributions) will fall upon and be discharged wholly and exclusively by Contractor. If any person should seek to establish any liability or obligation upon Employment Business or upon Client on the grounds that Representative is an employee or worker (or should be treated as such for the purpose of employment rights, benefits and/or taxation) of Employment Business or of Client, Contractor agrees to indemnify and hold harmless Employment Business and/or Client and to keep Employment Business and/or Client, as the case may be, indemnified in respect of any such liability or obligation and any related (without limitation) costs, expenses, legal expenses, proceedings, settlements or other losses which Employment Business or Client incur.
- 12.6. In the event of the breach of clause 12.4 above, any contract or agreement purportedly entered into by Contractor or Representative as an agent for either Employment Business or Client shall be deemed to have been made as if Contractor or Representative, as the case may be, acted and contracted as principal.

13. Notices

- 13.1. Save as stated within clause 8.6 any notice required to be given under this Agreement shall be delivered by hand, sent by facsimile, e-mail or prepaid first class post to the recipient at its fax number or address specified in this Agreement.
- 13.2. Notices shall be deemed to have been given and served,
- 13.2.1. if delivered by hand, at the time of delivery if delivered before 5.00pm on a business day or in any other case at 10.00am on the next business day after the day of delivery; or
 - 13.2.2. if sent by facsimile or e-mail, at the time of despatch if despatched on a business day before 5.00 p.m. or in any other case at 10.00 a.m. on the next business day after the day of despatch, unless the transmission report indicates a faulty or incomplete transmission or, within the relevant business day, the recipient informs the sender that the facsimile or e-mail message was received in an incomplete or illegible form;
- 13.3. Contractor agrees that notices may be sent by or provided to Representative for or on behalf of Contractor.

14. Liability

- 14.1. Contractor agrees to indemnify and hold harmless Employment Business and Client in full from and against any and all, actions, claims, demands, proceedings, judgements, damages, losses (including indirect or consequential), liabilities, costs, charges and expenses (including legal fees), settlements, fines, interest and penalties of whatever nature and in whatever jurisdiction, which may be instituted, made or alleged against, or suffered or incurred by Employment Business or by Client, arising from or in connection with –
- 14.1.1. any breach of Contractor's or Representative's obligations under this Agreement;
 - 14.1.2. any deliberate or negligent act or omission of Contractor and/or of Representative;
 - 14.1.3. any assignee or sub-contractor to whom Contractor assigns or sub-contracts the performance of Services (where permitted by Employment Business in writing);
 - 14.1.4. the loss or destruction of or damage to any property of Client which is caused by Contractor/Representative;

- 14.1.5. death of or personal injury to any person caused by Contractor/Representative in connection with any Assignment (except, for the avoidance of any doubt, to the extent that this is caused by negligence of Employment Business or Client);
 - 14.1.6. any claim or allegation by Representative regarding the termination or expiry of any Assignment of Representative;
 - 14.1.7. any claim or allegation that Representative is an employee of Employment Business or of Client;
 - 14.1.8. any claim or demand, howsoever arising, against Employment Business or Client for income tax and/or employee's and/or employer's National insurance contributions relating to any Representative including claims arising out of Off-Payroll; or
 - 14.1.9. any claim against Employment Business or Client arising out of any act or omission of any Representative including (without limitation) any act of discrimination.
- 14.2. Contractor shall ensure and maintain the provision of adequate Employers Liability insurance (where legally required) public liability insurance, Professional Indemnity insurance, tax investigation and tax liability insurance including cover for any claims pursuant to the Off-Payroll legislation and any other suitable policies of insurance in respect of Contractor, Representative, the provision of Services and any and all indemnities relating thereto within this Agreement. Upon request, Contractor shall make a copy of the policy available to Employment Business. In addition to this clause 14.2, Employment Business may specify in the Assignment Schedule the level of insurance cover and any additional insurance Contractor shall maintain.
- 14.3. Without prejudice to any other rights and/or remedies Employment Business has within this Agreement or at law, Contractor is liable for any defects or deficiencies arising in relation to Services performed by Representative in the course of the Assignment and will, where requested, rectify at its own cost and in its own time such defects or deficiencies as may be capable of remedy within the period required by Client or, where no such specific period is required in the event then within a reasonable period of time from such request.
- 14.4. Except where stated otherwise within this Agreement and save as required by law, neither party shall be liable to the other for any indirect or consequential losses, howsoever arising, in connection with this Agreement.
- 14.5. Save as required by law, Employment Business will not be liable to Contractor or Representative for any loss, expense, damage or delay howsoever arising (whether directly or indirectly) in connection with this Agreement, save where expressly stated otherwise within this Agreement.

15. Contract Renewal

- 15.1. This Agreement and the duration of the Assignment may be extended by mutual agreement by the Parties signing a further Assignment Schedule.
- 15.2. Notwithstanding clause 15.1 above, if Representative supplied under this Agreement continue to perform Services or any other services for Client at the express request of Employment Business beyond the End of Assignment date set out within the applicable Assignment Schedule, then this Agreement shall be deemed to be extended for an additional period until such time as such further Assignment Schedule is signed or further agreement is entered into between the Parties ("the Deemed Period").
- 15.3. The terms and conditions contained herein shall be deemed to apply in respect of any Services or other services provided by Contractor or Representative during the Deemed Period, except as stated in clause 15.4 below.
- 15.4. In addition to the rights of the Parties in connection with clause 15.3 above, Employment Business may terminate the Deemed Period with immediate effect and any notice period detailed in the relevant Assignment Schedule shall not apply.

16. General

- 16.1. Any failure by Employment Business to enforce at any particular time any one or more of its rights under this Agreement shall not be deemed a waiver of such rights or of the right to enforce this Agreement subsequently.
- 16.2. If any provision, clause or part-clause of this Agreement is held to be invalid, void, illegal or otherwise unenforceable by any judicial body, the remaining provisions of this Agreement shall remain in full force and effect to the extent permitted by law.
- 16.3. Save as provided in this clause 16.3, no provision of this Agreement shall be enforceable by any person who is not a party to it pursuant to the Contract (Rights of Third Parties) Act 1999 ("the Act"). This does not, however, affect any right or remedy of a third party that exists or is available independently of the Act. Client named on the Assignment Schedule will have the benefit of the provisions and the indemnities within this Agreement where stated within the clauses in this Agreement. Notwithstanding that any term of this Agreement may be or become enforceable by a person who is not a party to it, the terms of this Agreement may be varied, amended or modified without the consent of any such third party.
- 16.4. If there is a conflict between these terms and conditions and the Assignment Schedule, these terms and conditions will take precedence save where expressly provided for within these terms and conditions or where additional terms/conditions or variations are expressly stated within the Assignment Schedule.
- 16.5. Contractor shall comply with all applicable laws, statutes, regulations, codes and guidance relating to anti-bribery and anti-corruption (Anti Bribery Laws) which includes (without limitation) compliance with the Bribery Act 2010. Contractor will not, and will procure that Representative will not, offer, give or agree to give to any employee or representative of Employment Business or of Client or of any third party any gift, personal financial incentive or other consideration that could act or reasonably be perceived to act as an inducement or a reward for any act or failure to act connected to the performance of this Agreement and the arrangement of Assignment.
- 16.6. Contractor shall comply with all applicable anti-slavery and human trafficking laws and regulations including the Modern Slavery Act 2015.

17. Governing Law and Jurisdiction

- 17.1. This Agreement shall be construed in accordance with the laws of England and Wales and all disputes, claims or proceedings between the parties relating to the validity, construction or performance of this Agreement shall be subject to the exclusive jurisdiction of the courts of England and Wales.

**Signed for and on behalf of
Xpertise Recruitment Ltd**



**Richard Harrison
4th May 2023**

**Signed for and on behalf of
BOAS+ Limited**



ASSIGNMENT SCHEDULE

This Assignment Schedule is subject to and forms part of the Agreement (AGREEMENT FOR THE ENGAGEMENT AND PROVISION OF SERVICES). In the event of conflict between the terms and conditions and this Assignment Schedule, the terms and conditions will take precedence save where expressly provided for within the terms and conditions or where additional term/conditions or variations are expressly stated below within this Assignment Schedule.

Name of Contractor: BOAS+ Limited

Representative of Contractor: Erho Adjara
(or substitute appointed in accordance with Clause 2.6)

Services: Providing Business Analyst services

Project Deliverables:

- Conduct business analysis for key functional solution that needs implementing (e.g. Assessment, Enrolments, Partner data sharing options etc.)
- Work with stakeholders to gather requirements and document business processes
- Analyse business needs and recommend improvements to current processes
- Lead workshops and drive discussions to gather requirements and align stakeholders
- Deliver integration functional design and data mapping documents
- Create process documentation and requirement documentation
- Assist with system implementation, testing, and training
- Collaborate with development and technical teams to ensure alignment of business requirements and technical implementation
- Support post-implementation activities, including troubleshooting and issue resolution
- Maintain project documentation and ensure knowledge transfer to end users

Client: Global Banking School Ltd

Assignment Start Date: 1st May 2023

Assignment End Date: 3rd November 2023

Fees Payable: £400 per day

Working Pattern: 4 days per week remote working and 1 day per week working onsite at the Greenford Campus, London

Notice Period for Contractor to Terminate: 2 weeks (10 working days)
subject always to clauses 8.3, 8.4 and 8.5

Notice Period for Employment Business to Terminate: 2 weeks (10 working days)
subject always to clauses 8.3, 8.4 and 8.5 that in the event shall take precedence over clause 8.2

Payment Terms: Monthly

Expenses:

Only approved expenses by Global Banking School Ltd

**Signed for and on behalf of
Xpertise Recruitment Ltd**



**Richard Harrison
4th May 2023**

**Signed for and on behalf of
BOAS+ Limited**
